

Rafi Mohammad v. Uttar Pradesh Power Corporation Limited and Others

High Court of Judicature at Allahabad · Division Bench · 3 March 2023 · Writ - C No. 5926 of 2023 · **Theft recovery citation quashed; no final assessment order**

HEADNOTE

A recovery citation for electricity dues in a theft case, issued when no final assessment order existed, was held illegal and quashed. The licensee was left at liberty to pass a fresh order strictly under the procedure in the U.P. Electricity Supply Code, 2005. The writ was disposed of.

FACTUAL SUMMARY

Rafi Mohammad petitioned the Allahabad High Court against Uttar Pradesh Power Corporation Limited and three others, challenging a recovery citation for electricity dues said to arise from theft. On 21 February 2023 the Court permitted service on respondents 1 to 3 and listed the matter. On 28 February 2023 counsel reported service on the Department's counsel, whose name was directed to be shown in the cause list. On 3 March 2023 that counsel appeared and stated that the citation had issued although no final assessment order existed.

REUSABLE CONSTRUCTIONS

1. A recovery citation for electricity dues in a theft case is illegal, and liable to be quashed, when no final assessment order is in existence. ¶ 3
2. After such a citation is quashed, the licensee may pass a fresh order only by following the procedure prescribed in the U.P. Electricity Supply Code, 2005. ¶ 3

HOLDING-UNITS

HOLDING-UNIT · UP-2005::3.3(e)

Theft recovery citation without a final assessment order

HOLDING

A recovery citation for electricity dues in a theft case, issued although no final assessment order exists, is illegal and is quashed. The licensee may pass a fresh order only in strict accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 3

PRINCIPLE TAGS

recovery-without-final-assessment-illegal

The Department conceded that the theft-dues recovery citation had issued with no final assessment order in existence. The Court treated that absence as rendering the citation illegal, quashed it, and reserved only a fresh order under the Supply Code procedure. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THEFT WAS ESTABLISHED AND WHAT SUM, IF ANY, IS RECOVERABLE ON A FRESH ASSESSMENT

The Court did not try the theft allegation or quantify dues. It quashed the citation and left the licensee to pass a fresh order under the Supply Code. ¶ 3

